

Amendment No. 1 to HB0793

White
Signature of Sponsor

AMEND Senate Bill No. 836

House Bill No. 793*

by deleting all language after the caption and substituting instead the following:

WHEREAS, in *Plyler v. Doe*, 457 U.S. 202 (1982), the United States Supreme Court held that illegal alien children living in the United States could not be excluded from a free public education based upon their immigration status; and

WHEREAS, the Tennessee General Assembly finds that both the volume of illegal immigration, and its commensurate drain on State resources, as well as federal immigration policy have materially changed since 1982, when *Plyler* was decided; and

WHEREAS, the Tennessee General Assembly finds that data from the U.S. Immigration and Naturalization Service, Office of Policy and Planning, *Estimates of the Unauthorized Immigrant Population Residing in the United States: 1990 to 2000*, shows the "many States . . . had relatively few unauthorized residents" when *Plyler* was decided, but have subsequently "experienced rapid growth of the unauthorized population"; and

WHEREAS, the Tennessee General Assembly finds that data from the U.S. Department of Homeland Security shows that the number of illegal aliens present in the United States has nearly quadrupled in the past thirty years. The data estimates 10,990,000 were present in 2022. This number represents a material change in the illegal immigration environment that existed when *Plyler* was decided; and

WHEREAS, the Tennessee General Assembly finds that the sole focus of this act, individuals who have "exhausted all available appeals" and are therefore subject to a valid final order of removal, is a large population. At the end of fiscal year 2023, according to U.S.

Immigration and Customs Enforcement, *Fiscal Year 2023 ICE Annual Report*, 1,292,830 aliens had "completed the legal process and ha[d] been ordered removed"; and

WHEREAS, the Tennessee General Assembly finds that, unlike the statute at issue in *Plyler*, because this act only applies to individuals "who[se] proceedings have been completed", it is intended to "operate harmoniously within the federal program" of immigration enforcement; and

WHEREAS, the Tennessee General Assembly finds that given the 1,292,830 individuals who have been ordered removed by a final order, there no longer is an "inchoate federal permission to remain" that was present in *Plyler v. Doe*; rather, these 1,292,830 final orders of removal are a "fairly discernable" "national policy that supports the State in" implementing this act; and

WHEREAS, Tennessee is best suited to determine the educational needs of its citizenry; in fact, unlike the United States Constitution, the Tennessee Constitution in Article XI, Section 12 requires that the General Assembly "provide for the maintenance, support and eligibility standards of a system of free public schools"; and

WHEREAS, the General Assembly seeks to fully effectuate its own constitutional mandate in Article XI, Section 12 of the Tennessee Constitution to provide for the maintenance, support, and eligibility standards of a system of free public schools by establishing an eligibility standard for Tennessee public schools; and

WHEREAS, it is fitting and proper for the Tennessee General Assembly to fully exercise its constitutional powers and duties in light of the exponential growth in the population of illegal aliens in this State, to utilize public funds for Tennessee citizens who are lawfully present in the United States, and to remove the burden of providing a free publicly funded education for illegal alien children from Tennessee taxpayers; now, therefore,

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 49, Chapter 6, Part 30, is amended by adding the following as a new section:

(a) Notwithstanding another law to the contrary:

(1) An LEA or public charter school may:

(A) Require school-age students who seek to enroll in the LEA or public charter school to produce documentation establishing that the student:

(i) Is a citizen of the United States;

(ii) Is in the process of obtaining citizenship; or

(iii) Holds a legal immigration or visa status;

(B) Enroll students without requiring the production of documentation described in subdivision (a)(1)(A);

(C) Condition the enrollment of students on the production of documentation described in subdivision (a)(1)(A), regardless of whether the documentation produced establishes that a student meets, or fails to meet, one (1) of the criteria in subdivision (a)(1)(A);

(D) Condition the enrollment of a student who does not produce the documentation described in subdivision (a)(1)(A), as required by the LEA or public charter school, or whose documentation does not establish that the student meets one (1) of the criteria in subdivision (a)(1)(A) on payment of tuition in accordance with this section; or

(E) Deny enrollment to a student who does not produce the documentation described in subdivision (a)(1)(A), as required by the LEA or public charter school, or whose documentation does not establish that the student meets one (1) of the criteria in subdivision (a)(1)(A) without having to offer the student the option of enrolling in the LEA or public charter school if the student pays tuition; and

(2) If an LEA or public charter school conditions on payment of tuition, or elects to deny altogether, a student's enrollment in the LEA or public charter

school pursuant to subdivision (a)(1)(D) or (a)(1)(E) based on a determination made by the LEA or public charter school that the documentation produced for the student does not establish that the student meets one (1) of the criteria in subdivision (a)(1)(A), then, notwithstanding this section to the contrary, the LEA or public charter school shall enroll the student without requiring payment of tuition, if applicable, during the twenty-one-day window for appealing the determination pursuant to subdivision (c)(1) and during any appeal proceedings initiated by or on behalf of the student with the department of education pursuant to subdivision (c)(1). Once the twenty-one day period expires without an appeal being filed, or at the conclusion of the appeal proceedings, the LEA or public charter school may take the action authorized in this section with regard to the student's enrollment school based on the department's determination on appeal.

(b) Notwithstanding chapter 6 or 13 of this title to the contrary, each LEA and public charter school that elects to condition a student's enrollment in the LEA or public charter school on payment of tuition pursuant to subdivision (a)(1)(D) shall annually establish a uniform tuition amount for such students. Except as otherwise provided in this section, the uniform tuition amount must:

- (1) Be no less than the base funding amount, as defined in § 49-3-104(2), for the respective school year;
- (2) Not exceed the total average per pupil funding amount for the LEA for the respective school year; and
- (3) Be paid in full before the student is enrolled.

(c) If an LEA or public charter school determines that the documentation produced for a student does not establish that the student meets one (1) of the criteria in subdivision (a)(1)(A), and the LEA or public charter school has elected to condition on payment of tuition, or to deny altogether, the student's enrollment in the LEA or public charter school, then:

(1) The LEA or public charter school shall immediately notify the student or the student's parent or guardian in a dated writing of the:

(A) Determination made by the LEA or public charter school regarding the documentation produced for the student;

(B) Enrollment decision for the student; and

(C) Opportunity to appeal the determination made by the LEA or public charter school regarding the insufficiency of the documentation produced for the student to the department of education no later than twenty-one (21) days from the date of the written notice required in this subdivision (c)(1);

(2) The student, or the parent or guardian of a student, who is being denied enrollment or whose enrollment is being conditioned on payment of tuition pursuant to this section may appeal the determination made by the LEA or public charter school regarding the documentation produced for the student to the department no later than twenty-one (21) days from the date of the written notice required in subdivision (c)(1);

(3) The student, parent, or guardian who files an appeal with the department pursuant to this subsection (c) is entitled to an expedited hearing before the department and bears the burden of proving by a preponderance of the evidence that the student meets one (1) of the criteria in subdivision (a)(1)(A);

(4) If the department determines on appeal that the student does not meet one (1) of the criteria in subdivision (a)(1)(A), then the department shall notify the student, or the student's parent or guardian, and the LEA or public charter school of its determination; and

(5) If the student or the student's parent or guardian does not timely appeal the determination made by the LEA or public charter school regarding the documentation produced for the student to the department, or if the department

determines on appeal that the student does not meet one (1) of the criteria in subdivision (a)(1)(A), then:

(A) The LEA or public charter school may condition the student's enrollment or continued enrollment in the LEA or public charter school on payment of tuition. Tuition must be determined pursuant to subsection (b) and may be prorated by the LEA or public charter school based on the number of days the student is enrolled, if enrollment is for less than a full school year; or

(B) The LEA or public charter school may deny the student's enrollment or continued enrollment in the LEA or public charter school and may remove the student from a public school managed and controlled by the LEA's local board of education or from the public charter school, as applicable.

(d) Beginning with the 2025-2026 school year, each LEA and public charter school shall document the number of students who enroll in the LEA or public charter school without providing the LEA or public charter school with a true copy the student's birth certificate and shall annually report that number to the department of education. The department shall report the information received from each LEA and public charter school pursuant to this subsection (d) for the immediately preceding school year to the speakers of the house of representatives and the senate by July 1 each year.

(e) Notwithstanding chapter 6, part 30 of this title or another law to the contrary, a student and the parent or guardian of a student who is denied enrollment in, or who is removed from, an LEA or public charter school pursuant to this section are exempt from all compulsory school attendance and truancy intervention laws and requirements.

(f) Notwithstanding title 10, chapter 7, all records relating to the legality of a student's presence in the United States and all correspondence between an LEA or

public charter school and the department of education for purposes of this section are confidential records.

SECTION 2. The state board of education shall promulgate rules, including emergency rules, to effectuate this act. The rules must, at a minimum, establish the appeal process required in this act, and must be promulgated in accordance with the Uniform Administrative Procedures Act, compiled in title 4, chapter 5.

SECTION 3. This act takes effect July 1, 2025, the public welfare requiring it, and applies to the 2025-2026 school year and subsequent school years.